

UPSC GS-II POLITY

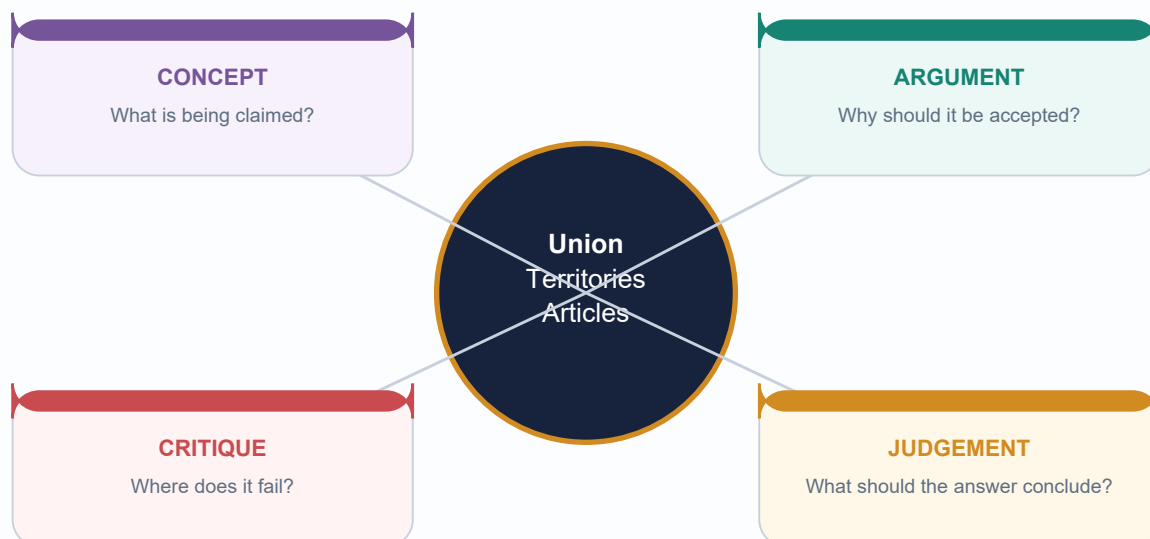
Union Territories (Articles 239-241, Part VIII)

Integrated Basic + Advanced Course

10 deep-learning modules | 1956 Creation to the Delhi Services Controversy

Visual structures, administration models, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant, Ch. 40) and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Creation & Rationale of Union Territories (1956)

GS-II Polity --
Territorial
Organisation

NEWS TRIGGER

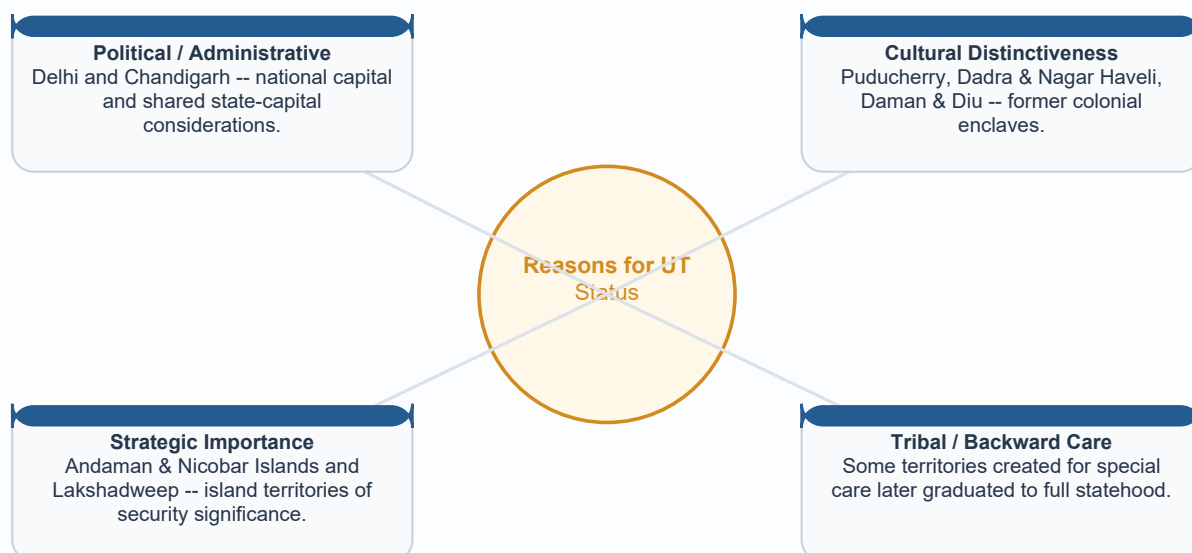
Every current debate on UT status, statehood demands or reorganisation traces back to the 1956 decision to retain certain territories under direct central administration.

INTRO & ORIGIN

Union Territories were constituted in 1956 by the 7th Amendment Act along with the States Reorganisation Act, carved out of the former Part C and Part D territories of the original Constitution.

They were created for varied reasons: political and administrative considerations (Delhi, Chandigarh), cultural distinctiveness (Puducherry, Dadra and Nagar Haveli, Daman and Diu), strategic importance (Andaman and Nicobar Islands, Lakshadweep), and tribal or backward-area care (some of which later became full states).

WHY UNION TERRITORIES WERE CREATED (1956)



STATIC THEORY

- The 1956 reorganisation replaced the original Part A/B/C/D classification of states and territories with the modern State-Union Territory distinction.
- The four rationale categories -- political-administrative, cultural, strategic and tribal-care -- explain why UTs are not a uniform category, but a residual one covering diverse circumstances.
- Some original UTs have since acquired full statehood, showing that UT status was never intended as necessarily permanent.

MEMORY HOOK

1956 = 7th Amendment + States Reorganisation Act -> UTs created for political, cultural, strategic or tribal-care reasons.

MUST-KNOW FACTS

1. Union Territories were constituted in 1956 by the 7th Amendment Act and the States Reorganisation Act.
2. They were carved out of the earlier Part C and Part D territories.
3. UTs were created for political-administrative, cultural, strategic and tribal-care reasons.
4. Some UTs created for special care have since become full states.

UPSC TRAPS

WRONG: All Union Territories were created for the same single reason.

CORRECT: They were created for varied reasons -- political-administrative, cultural, strategic and tribal-care.

MAINS ANGLE

Examine the historical rationale for creating Union Territories in 1956, and assess whether these original reasons still justify the continuation of UT status today.

STUDY LINK

Polity -> Part VIII -> Article 239 -> 1956 Reorganisation

HIGH**The Current List of UTs -- 2019-2020 Reorganisation**

GS-II Polity --
Current
Territorial Status

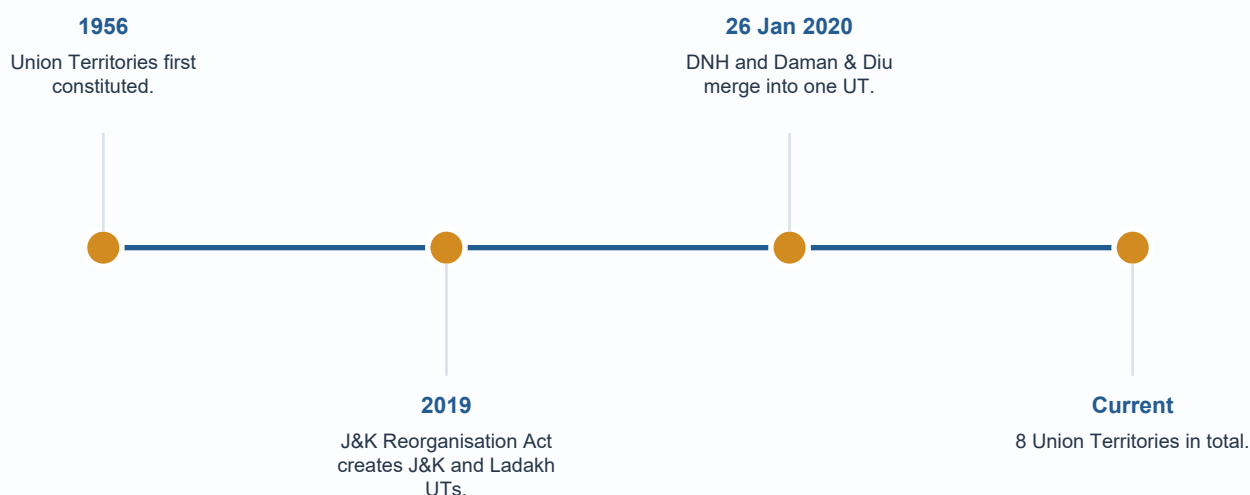
NEWS TRIGGER

India's UT count changed twice in quick succession -- 2019 and 2020 -- making the 'current count' one of the most frequently updated facts in Indian polity.

INTRO & ORIGIN

India currently has 8 Union Territories -- note that Laxmikant's original textbook list of 9 is now outdated (pre-2020). Jammu & Kashmir and Ladakh were created in 2019 by the J&K Reorganisation Act, with J&K retaining a legislature and Ladakh created without one.

Dadra & Nagar Haveli and Daman & Diu were merged into a single UT on 26 January 2020, reducing the total count from 9 to 8: Andaman & Nicobar Islands, Chandigarh, Dadra & Nagar Haveli and Daman & Diu, Delhi (NCT), Jammu & Kashmir, Ladakh, Lakshadweep, and Puducherry.

REORGANISATION OF UNION TERRITORIES, 2019-2020

KEY DATA

Event	Detail
J and K and Ladakh (2019)	Created by the J and K Reorganisation Act; J and K has a legislature, Ladakh does not
DNH + Daman and Diu merger (26 Jan 2020)	Merged into a single UT, reducing the total from 9 to 8
Current total	8 UTs: A and N Islands, Chandigarh, DNH and Daman and Diu, Delhi (NCT), J and K, Ladakh, Lakshadweep, Puducherry

STATIC THEORY

- The pre-2020 figure of 9 UTs (as in older editions of standard textbooks) is now outdated -- this is one of the most common 'stale fact' traps in current Indian polity.
- J&K and Ladakh were carved out of the former state of Jammu & Kashmir, not from any earlier UT.
- The DNH-Daman & Diu merger is administratively significant but did not affect J&K/Ladakh's separate, unrelated 2019 creation.

MEMORY HOOK

8 UTs: A&N - Chandigarh - DNH&DD - Delhi - J&K - Ladakh - Lakshadweep - Puducherry.

MUST-KNOW FACTS

1. India currently has 8 Union Territories.
2. J&K and Ladakh were created in 2019 by the J&K Reorganisation Act.
3. Dadra & Nagar Haveli and Daman & Diu merged into one UT on 26 January 2020.
4. Ladakh has no legislature; J&K retains one.

UPSC TRAPS

WRONG: India has 9 Union Territories, as listed in older textbooks.

CORRECT: India currently has 8 UTs, following the 2020 DNH-Daman & Diu merger.

MAINS ANGLE

Discuss the constitutional and political significance of the 2019-2020 reorganisation of Union Territories, including the creation of J&K and Ladakh and the DNH-Daman & Diu merger.

STUDY LINK

Polity -> Part VIII -> Current UT List -> J&K Reorganisation Act 2019

HIGH**Administration -- President Through the Administrator**

GS-II Polity --

Executive

Structure

NEWS TRIGGER

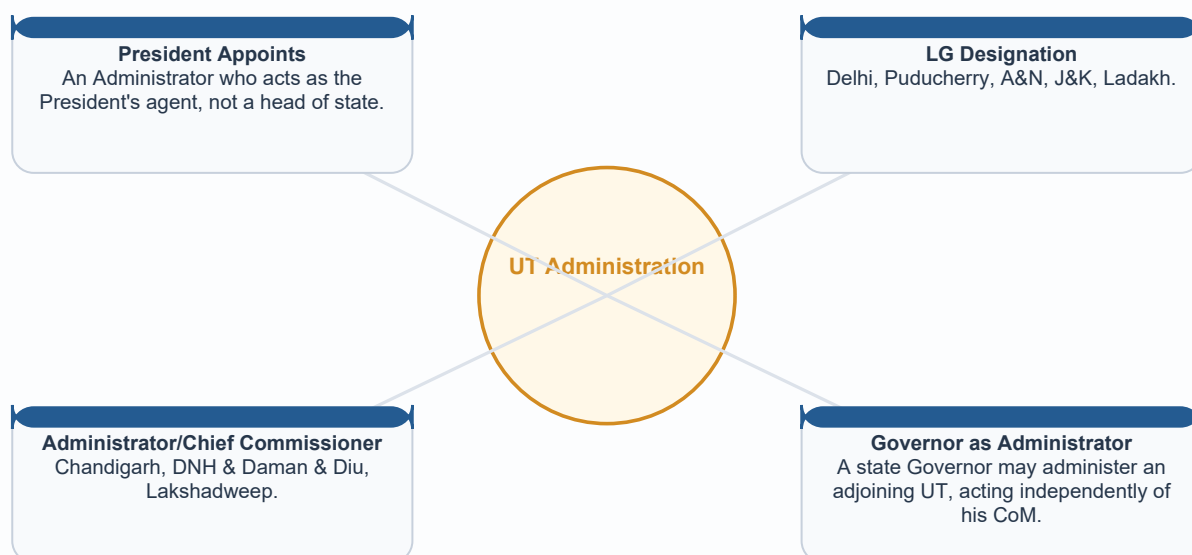
Disputes between Administrators/Lieutenant Governors and elected UT governments repeatedly test the constitutional meaning of 'agent of the President'.

INTRO & ORIGIN

Every Union Territory is administered by the President through an Administrator he appoints -- an agent of the President, not a head of state like a Governor. The designation may be Lieutenant Governor, Chief Commissioner or Administrator.

The President may also appoint the Governor of a state as the Administrator of an adjoining Union Territory; in that capacity, the Governor acts independently of his state Council of Ministers.

HOW UNION TERRITORIES ARE ADMINISTERED



KEY DATA

Designation	UTs
Lieutenant Governor (LG)	Delhi, Puducherry, Andaman and Nicobar Islands, J and K, Ladakh
Administrator / Chief Commissioner	Chandigarh, Dadra and Nagar Haveli and Daman and Diu, Lakshadweep

STATIC THEORY

- The 'agent of the President' status is the core conceptual distinction between a UT Administrator and a state Governor, who functions as a constitutional head of state.
- When a state Governor doubles as an adjoining UT's Administrator, the two roles are constitutionally distinct -- as Administrator, he acts independently of the state's Council of Ministers.
- The specific designation (LG vs Administrator vs Chief Commissioner) does not change the underlying constitutional status; it is largely a matter of nomenclature tied to the UT's significance.

MEMORY HOOK

Administrator = agent of the President, not a mini-Governor.

MUST-KNOW FACTS

1. Every UT is administered by the President through an Administrator he appoints.
2. The Administrator is an agent of the President, not a head of state.
3. Designations include Lieutenant Governor, Chief Commissioner and Administrator.
4. A state Governor may be appointed Administrator of an adjoining UT, acting independently of his CoM in that role.

UPSC TRAPS

WRONG: A UT Administrator is a head of state, similar to a state Governor.

CORRECT: The Administrator is an agent of the President, not a head of state.

MAINS ANGLE

Examine the constitutional distinction between a UT Administrator (agent of the President) and a state Governor (constitutional head of state), and its practical implications for UT governance.

STUDY LINK

Polity -> Part VIII -> Article 239 -> Administrator

HIGH

Legislature & Law-Making Power

GS-II Polity --
Legislative
Powers

NEWS TRIGGER

The scope of subjects a UT assembly can legislate on -- and Parliament's overriding power -- is central to every Delhi and J&K governance dispute.

INTRO & ORIGIN

Only three Union Territories have their own legislature and Council of Ministers: Puducherry (since 1963), Delhi (since 1992) and Jammu & Kashmir (since 2019). Parliament, however, retains the power to legislate on any list -- including the State List -- for all Union Territories, whether or not they have their own assembly.

Even where an assembly exists, its own legislative scope is narrower than a full state's: Delhi's assembly covers the State List except public order, police and land, plus the Concurrent List; J&K's assembly covers the State List except public order and police, plus the Concurrent List; Puducherry's assembly may legislate on any State or Concurrent List subject.

KEY DATA

UT Assembly	Legislative Scope
Puducherry (since 1963)	Any State List or Concurrent List subject
Delhi (since 1992)	State List, except public order, police and land, plus Concurrent List
Jammu and Kashmir (since 2019)	State List, except public order and police, plus Concurrent List
Parliament (all UTs)	May legislate on any list, including the State List, regardless of local assemblies

STATIC THEORY

- Having a legislature does not make a UT equivalent to a state -- Parliament's overriding power to legislate on any subject for UTs remains constitutionally unaffected.
- Among the three UTs with legislatures, Puducherry's assembly has the broadest scope (any State/Concurrent subject), while Delhi and J&K face specific carve-outs (public order, police, and for Delhi, also land).
- This graded, asymmetric legislative scope across UTs is a key analytical feature distinguishing UT governance from ordinary state governance.

MEMORY HOOK

Only 3 UTs have legislatures: Puducherry (1963), Delhi (1992), J&K (2019) -- but Parliament always overrides.

MUST-KNOW FACTS

1. Only Puducherry, Delhi and J&K have their own legislature and Council of Ministers.
2. Parliament can legislate on any list, including the State List, for all UTs.
3. Delhi's assembly excludes public order, police and land.
4. J&K's assembly excludes public order and police (but not land).

UPSC TRAPS

WRONG: A UT with its own legislature is functionally equivalent to a full state.

CORRECT: Parliament retains overriding power to legislate on any list for UTs, unlike for states.

MAINS ANGLE

Examine the asymmetric legislative powers of UTs with legislatures (Puducherry, Delhi, J&K) compared to full states, and evaluate the implications for genuine self-government.

STUDY LINK

Polity -> Part VIII -> UT Legislatures -> Parliament's Overriding Power

HIGH**Special Status of Delhi -- Article 239-AA**

GS-II Polity --
National Capital
Governance

NEWS TRIGGER

Delhi's unique constitutional design under Article 239-AA remains the single most frequently tested UT topic, given its recurring centre-state friction.

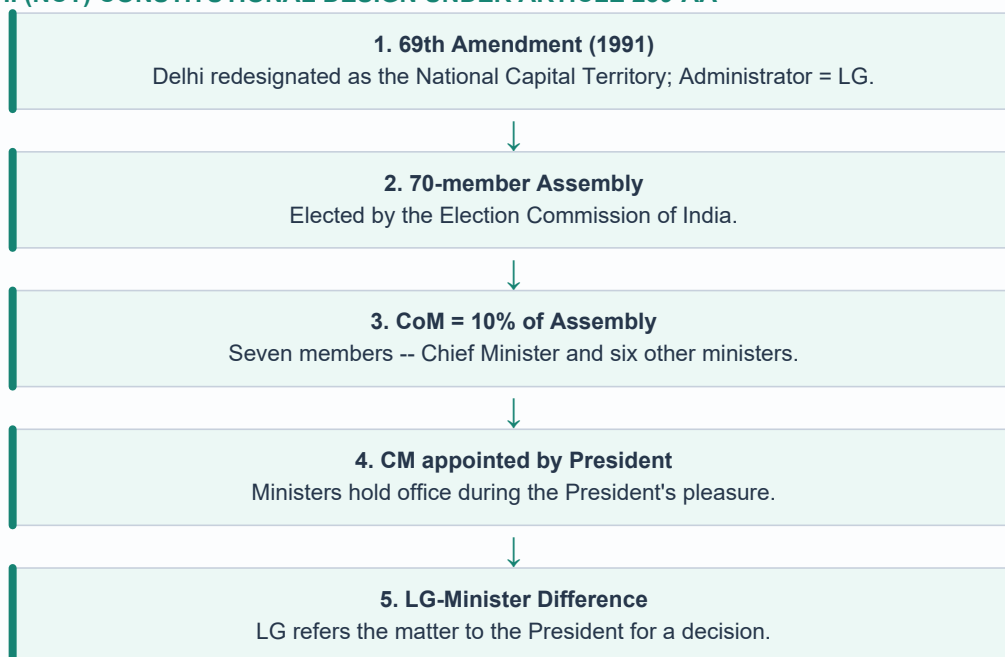
INTRO & ORIGIN

The 69th Amendment Act, 1991 redesignated Delhi as the National Capital Territory (NCT), with the Administrator designated as Lieutenant Governor. The Legislative Assembly has 70 members, elected by the Election Commission of India, and a Council of Ministers of 10% of the assembly's strength -- seven, comprising the Chief Minister and six other ministers.

The Chief Minister is appointed by the President, and ministers hold office during the President's pleasure. On any difference between the LG and the ministers, the LG refers the matter to the President. A President's Rule-like provision, resembling Article 356, also exists for Delhi.

KEY DATA

Item	Detail
Constitutional basis	Article 239-AA, inserted by the 69th Amendment Act, 1991
Designation	National Capital Territory (NCT) of Delhi
Assembly size	70 members, elected by the Election Commission of India
Council of Ministers	10% of assembly strength = 7 (CM + 6 ministers)
CM appointment	By the President
LG-Minister disputes	Referred by the LG to the President

THE DELHI (NCT) CONSTITUTIONAL DESIGN UNDER ARTICLE 239-AA**STATIC THEORY**

- Delhi's special status under Article 239-AA sits between an ordinary UT and a full state, making it a genuinely asymmetric federal arrangement.
- The President's appointment of the Chief Minister (rather than the LG) is a distinctive feature not found in ordinary parliamentary state governments.
- The President's Rule-like provision resembling Article 356 gives the Union an additional constitutional lever specific to Delhi.

MEMORY HOOK

Delhi = 69th Amendment, NCT, 70-member assembly, CoM of 7, CM appointed by the President.

MUST-KNOW FACTS

1. The 69th Amendment Act, 1991 redesignated Delhi as the National Capital Territory.
2. Delhi's Legislative Assembly has 70 members, elected by the ECI.
3. The Council of Ministers is 10% of assembly strength -- 7 members (CM plus 6).
4. The Chief Minister of Delhi is appointed by the President.

UPSC TRAPS

WRONG: The Chief Minister of Delhi is appointed by the Lieutenant Governor.

CORRECT: The Chief Minister is appointed by the President.

WRONG: Delhi's assembly can legislate on police and land.

CORRECT: Delhi's assembly excludes public order, police and land from its legislative competence.

MAINS ANGLE

Article 239-AA and the Delhi model -- examine it as an asymmetric, unresolved federal experiment balancing central control and elected local governance.

STUDY LINK

Polity -> Part VIII -> Article 239-AA -> 69th Amendment

HIGH

The Delhi Services Controversy -- A Live CA Anchor

GS-II Polity --
Current Affairs
Integration

NEWS TRIGGER

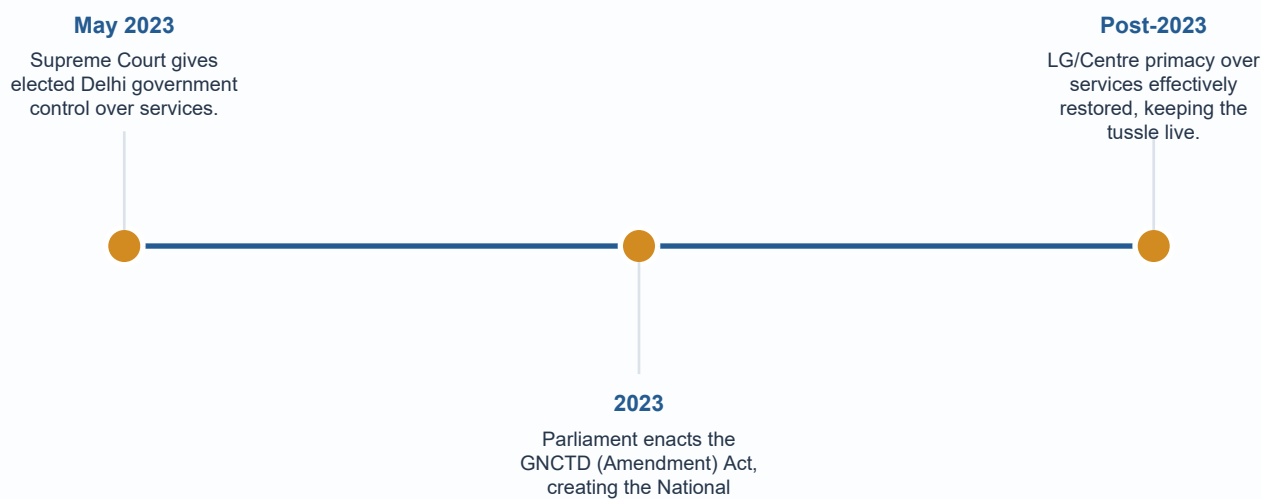
The Supreme Court's May 2023 verdict and Parliament's subsequent GNCTD (Amendment) Act, 2023 together make the Delhi Services dispute one of the most active Centre-versus-elected-government controversies in current polity.

INTRO & ORIGIN

In May 2023, the Supreme Court held that the elected Delhi government has control over 'services' -- administrative control over officers -- except in matters of public order, police and land.

Parliament responded with the GNCTD (Amendment) Act, 2023, which, along with the National Capital Civil Services Authority it created, effectively restored the Lieutenant Governor's and the Centre's primacy over services -- making this a live federalism and Centre-versus-elected-government tussle.

THE DELHI SERVICES DISPUTE TIMELINE



STATIC THEORY

- The Supreme Court's May 2023 verdict interpreted Article 239-AA to give the elected government administrative control over most services -- a significant, if contested, expansion of Delhi's self-government.
- The GNCTD (Amendment) Act, 2023 is Parliament's legislative response, using its plenary power over UTs (seen in the earlier legislature module) to recalibrate control back toward the LG and Centre.
- This entire episode is a live, ongoing illustration of the tension between Delhi's special constitutional status and the Union's overriding legislative authority.

MEMORY HOOK

SC (2023) gave services to the elected govt -> GNCTD Amendment Act (2023) gave primacy back to LG/Centre.

MUST-KNOW FACTS

1. The Supreme Court, in May 2023, gave the elected Delhi government control over services.
2. This excluded public order, police and land, which remain outside the elected government's control.
3. Parliament enacted the GNCTD (Amendment) Act, 2023, creating the National Capital Civil Services Authority.
4. This Act effectively restored LG/Centre primacy over services.

UPSC TRAPS

WRONG: The Supreme Court's 2023 verdict gave Delhi's elected government control over public order and police as well.

CORRECT: The verdict excluded public order, police and land -- it covered administrative control over other services.

MAINS ANGLE

Discuss the Delhi Services controversy as an illustration of the ongoing tension between Article 239-AA's asymmetric federal design and Parliament's plenary legislative power over Union Territories.

STUDY LINK

Polity -> Article 239-AA -> Delhi Services
Case -> GNCTD Amendment Act 2023

HIGH**J&K and Ladakh -- The 2019 Reorganisation**

GS-II Polity --
Territorial &
Constitutional
Change

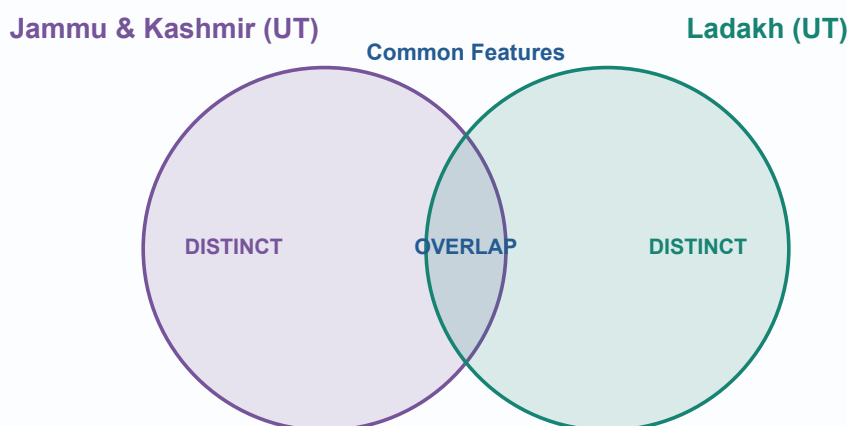
NEWS TRIGGER

J&K's statehood restoration remains pending even after the 2024 assembly elections, keeping this among the most current UT-related developments going into 2026.

INTRO & ORIGIN

The J&K Reorganisation Act, 2019 created two Union Territories from the former state of Jammu & Kashmir: Jammu & Kashmir, which retains its own Legislative Assembly, and Ladakh, which was created without a legislature.

A verified PYQ anchor confirms this topic's exam salience: the 2025 GS-II Mains question 4 (10 marks, 150 words) asked about the nature, powers and functions of the J&K Union Territory Legislative Assembly after the 2019 Reorganisation Act.

JAMMU & KASHMIR VS LADAKH -- POST-2019 UT STATUS**Jammu & Kashmir (UT)**

- Has its own Legislative Assembly
- Statehood restoration pending as of 2026

Common Features

- Both created by the J&K Reorganisation Act, 2019
- Both administered through a Lieutenant Governor

Ladakh (UT)

- No legislature
- Governed via President's Regulations

J&K and Ladakh share the same 2019 origin and LG-based administration, but differ sharply on legislative presence.

STATIC THEORY

- The 2019 Reorganisation Act is a rare instance of a full state being converted into two Union Territories, making it a structurally distinctive event in India's territorial history.
- J&K retaining a legislature (unlike Ladakh) links this module directly to the earlier legislature-and-law-making module -- its assembly's scope excludes public order and police.
- The pending statehood restoration for J&K is an active, evolving current-affairs thread linked to post-2024 assembly election developments.

MEMORY HOOK

2019 Reorganisation Act: J&K keeps a legislature, Ladakh does not -- both via LG.

MUST-KNOW FACTS

1. The J&K Reorganisation Act, 2019 created the J&K and Ladakh Union Territories.
2. J&K retains its own Legislative Assembly; Ladakh does not.
3. The 2025 GS-II Mains paper (Q4, 10 marks, 150 words) asked about the J&K UT Legislative Assembly's nature, powers and functions post-2019.
4. J&K's statehood restoration remains pending as of 2026.

UPSC TRAPS

WRONG: Ladakh has its own Legislative Assembly, like Jammu & Kashmir.

CORRECT: Ladakh was created without a legislature; only J&K retains one.

MAINS ANGLE

[Verified PYQ anchor -- 2025 GS-II Q4, 10 marks, 150 words] Discuss the nature, powers and functions of the J&K Union Territory Legislative Assembly after the 2019 Reorganisation Act, and the current status of statehood restoration.

STUDY LINK

Polity -> Part VIII -> J&K Reorganisation Act 2019 -> Special Provisions (Ch 22)

HIGH

CA & Mains Synthesis -- Centralised Control vs Democratic Aspiration

GS-II Polity --
Current Affairs
Integration

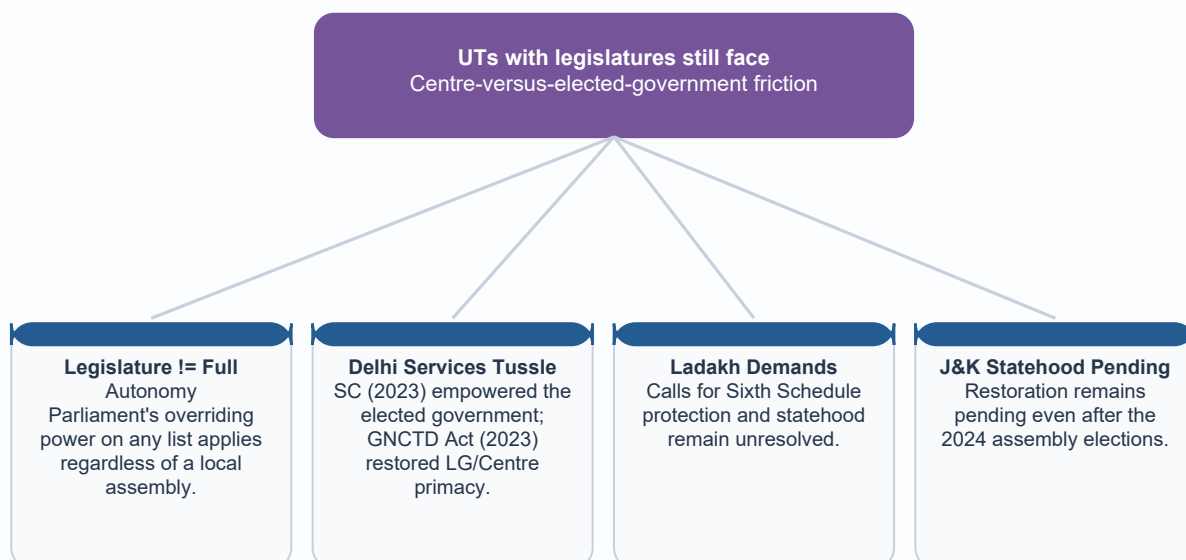
NEWS TRIGGER

Ladakh's Sixth Schedule and statehood demands, alongside J&K's pending statehood restoration and Delhi's ongoing services dispute, together define the current UT governance debate heading into 2026.

INTRO & ORIGIN

Across Delhi, J&K and Ladakh, Union Territory governance in the mid-2020s reveals a recurring pattern: legislatures and elected governments exist, but the Centre retains decisive overriding authority, generating persistent friction and unresolved demands.

THE UT GOVERNANCE DEBATE -- RECURRING CENTRE-VERSUS-ELECTED-GOVERNMENT TENSION



STATIC THEORY

- This synthesis module ties together the administrative (agent-of-President), legislative (Parliament's overriding power) and current-affairs (Delhi Services, Ladakh, J&K) threads covered earlier in this course.
- The recurring theme across all three UTs is that formal democratic institutions (assemblies, elected governments) coexist with strong, constitutionally protected central oversight.
- This tension is precisely what makes Article 239-AA and the broader UT framework a genuinely asymmetric and still-evolving federal experiment.

MEMORY HOOK

Legislature exists, but Parliament and the Centre still hold the final overriding word -- the core UT paradox.

MUST-KNOW FACTS

1. Ladakh's Sixth Schedule and statehood demands remain part of the current UT governance debate.
2. J&K's statehood restoration remains pending post-2024 assembly elections.
3. The Delhi Services tussle (SC 2023 verdict vs GNCTD Amendment Act 2023) exemplifies the recurring Centre-elected-government friction across UTs.

UPSC TRAPS

WRONG: Granting a legislature to a UT resolves Centre-versus-elected-government tensions permanently.

CORRECT: Tensions persist because Parliament's overriding legislative power over UTs remains constitutionally unaffected by the presence of a local legislature.

MAINS ANGLE

The 'agent of the President' design versus democratic aspirations in Union Territories with legislatures -- examine using the Delhi Services controversy, Ladakh's Sixth Schedule/statehood demand, and J&K's pending statehood restoration as illustrative cases.

STUDY LINK

Polity -> Part VIII -> UT Governance Debate
-> Special Provisions (Ch 22)

MEDIUM UPSC RELEVANCE

MEDIUM

President's Regulations & High Courts

GS-II Polity --
Legal & Judicial
Structure

NEWS TRIGGER

The absence of a separate High Court in most UTs, and reliance on President's Regulations for law-making, are recurring factual anchors in UT-related questions.

INTRO & ORIGIN

For Andaman & Nicobar Islands, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, and Ladakh (and for Puducherry when its assembly is suspended or dissolved), the President may issue Regulations that carry the force of an Act of Parliament.

Only Delhi has its own High Court among the Union Territories. The others fall under an adjacent state's High Court -- for example, Andaman & Nicobar under the Calcutta High Court, Chandigarh under the Punjab and Haryana High Court, and J&K and Ladakh under a common High Court.

KEY DATA

Mechanism / Institution	Applicability
President's Regulations	A and N Islands, Lakshadweep, DNH and Daman and Diu, Ladakh; also Puducherry when its assembly is suspended/dissolved
Delhi High Court	Only UT with its own High Court
Calcutta High Court	Covers Andaman and Nicobar Islands
Punjab and Haryana High Court	Covers Chandigarh
Common J and K High Court	Covers both Jammu and Kashmir and Ladakh

STATIC THEORY

- President's Regulations under Article 240 have the force of an Act of Parliament -- a significant law-making shortcut for UTs without a functioning legislature.
- Delhi's unique possession of its own High Court reflects its special status as the National Capital Territory, distinguishing it from every other UT.
- Sharing High Courts across UTs and neighbouring states (e.g., J&K-Ladakh, Chandigarh-Punjab & Haryana) is an administrative arrangement, not evidence of shared political status.

MEMORY HOOK

President's Regulations = force of a Parliamentary Act; only Delhi has its own High Court.

MUST-KNOW FACTS

1. President's Regulations apply to A&N Islands, Lakshadweep, DNH & Daman & Diu, and Ladakh.
2. These Regulations have the force of an Act of Parliament.
3. Only Delhi among the UTs has its own High Court.
4. J&K and Ladakh share a common High Court.

UPSC TRAPS

WRONG: Every Union Territory has its own High Court.
CORRECT: Only Delhi has its own High Court; the others fall under adjacent states' High Courts.

MAINS ANGLE

Discuss the significance of President's Regulations as a law-making mechanism for Union Territories lacking a functioning legislature.

STUDY LINK

Polity -> Part VIII -> Article 240 -> President's Regulations

MEDIUM**Union Territory vs State -- Governance Asymmetry**

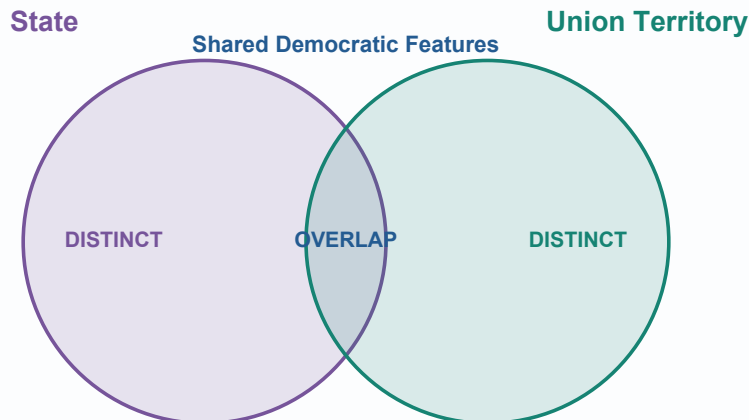
GS-II Polity --
Comparative
Federalism

NEWS TRIGGER

Comparing UT governance with full statehood is central to every debate on J&K's pending statehood restoration and on Delhi's repeated demands for greater autonomy.

INTRO & ORIGIN

A state is headed by a Governor as constitutional head, with an elected government enjoying autonomy over the State List, largely free from unilateral central legislation. A Union Territory, even where it has a legislature, is headed by an Administrator acting as an agent of the President, with Parliament retaining overriding power to legislate on any list.

STATE VS UNION TERRITORY -- STRUCTURAL COMPARISON**State**

- Governor is a constitutional head of state
- Elected government has autonomy over the State List
- Not subject to unilateral Parliamentary legislation on the State List

Shared Democratic Features

- Council of Ministers responsible to the elected assembly (where one exists)
- Elections conducted on the basis of universal adult franchise

Union Territory

- Administrator is an agent of the President, not a head of state
- Parliament may legislate on any list, including the State List
- Autonomy remains asymmetric even where a legislature exists

Even the most empowered UTs (Delhi, Puducherry, J&K) remain structurally distinct from full states because Parliament's overriding legislative power is never removed.

STATIC THEORY

- The defining asymmetry is Parliament's unqualified power to legislate on any subject for a UT, a power it does not hold over a state's exclusive domain.
- This comparison directly explains why UTs with legislatures (Delhi, Puducherry, J&K) are still not equivalent to states, despite having elected assemblies and Councils of Ministers.
- The 'agent of the President' design for Administrators contrasts sharply with a Governor's constitutional-head status, reinforcing the asymmetry at the executive level too.

MEMORY HOOK

State = Governor + State List autonomy; UT = Administrator (agent) + Parliament always overrides.

MUST-KNOW FACTS

1. A state's Governor is a constitutional head of state; a UT's Administrator is an agent of the President.
2. Parliament can legislate on any list, including the State List, for UTs -- unlike for states.
3. Even UTs with legislatures (Delhi, Puducherry, J&K) remain structurally asymmetric compared to full states.

UPSC TRAPS

WRONG: A UT with a legislature and Council of Ministers is constitutionally equivalent to a state.

CORRECT: It remains structurally asymmetric because Parliament retains overriding legislative power over UTs.

MAINS ANGLE

Examine the constitutional asymmetry between Union Territories (even those with legislatures) and full states, and its implications for genuine federal governance.

STUDY LINK

Polity -> Part VIII vs Part VI -> UT-State Asymmetry